

FOURTH AMENDMENT TO COMMERCIAL LEASE AGREEMENT

Store ID: S003

THIS FOURTH AMENDMENT TO COMMERCIAL LEASE AGREEMENT (this "Amendment") is made and entered into as of February 1, 2024, by and between **HARTFORD COMMERCIAL REAL ESTATE TRUST**, a Connecticut real estate investment trust ("Landlord"), and **SKYLINE STORES**, a Delaware corporation ("Tenant").

RECITALS

WHEREAS, Landlord and Tenant entered into that certain Commercial Lease Agreement dated April 1, 2021 (the "Original Lease"), as amended by the First Amendment dated October 15, 2022, the Second Amendment dated June 30, 2023, and the Third Amendment dated January 5, 2024 (collectively, the "Prior Amendments"), for approximately 21,000 square feet of retail space located at 12 River Road, Hartford, Connecticut 06106;

WHEREAS, the Original Lease is scheduled to expire on April 21, 2026;

WHEREAS, Tenant currently operates the Premises under the trade name "Skyline Value Store" and desires to extend the lease term to continue operations; and

WHEREAS, Landlord is willing to extend the lease term upon the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

AMENDMENTS

1. LEASE EXTENSION

The Original Lease term is hereby extended for an additional **SEVEN (7) YEARS**, commencing on April 22, 2026 (the "Extension Commencement Date") and expiring on April 21, 2033 (the "Extended Expiration Date").

2. BASE RENT FOR EXTENSION TERM

Base Rent during the Extension Term shall be as follows:

Extension Year	Period	Annual Rent	Monthly Rent	PSF/Year
Year 6	4/22/26 - 4/21/27	\$525,000	\$43,750	\$25.00
Year 7	4/22/27 - 4/21/28	\$546,000	\$45,500	\$26.00
Year 8	4/22/28 - 4/21/29	\$567,000	\$47,250	\$27.00
Year 9	4/22/29 - 4/21/30	\$588,000	\$49,000	\$28.00
Year 10	4/22/30 - 4/21/31	\$609,000	\$50,750	\$29.00
Year 11	4/22/31 - 4/21/32	\$630,000	\$52,500	\$30.00
Year 12	4/22/32 - 4/21/33	\$651,000	\$54,250	\$31.00

3. ADDITIONAL RENT MODIFICATIONS

3.1 CAM Expense Cap

During the Extension Term, annual increases in Tenant's Proportionate Share of CAM expenses (excluding taxes, insurance, and utilities) shall be capped at 3.5% per annum on a cumulative basis.

3.2 Management Fee Cap

The management fee component of additional rent shall not exceed 3.5% of gross receipts during the Extension Term.

4. CAPITAL IMPROVEMENTS ALLOWANCE

4.1 Tenant Improvement Allowance

Landlord shall provide Tenant with a tenant improvement allowance of **\$420,000** (\$20.00 per square foot) to be used for renovations and upgrades to the Premises during the Extension Term.

4.2 Disbursement Terms

The TI allowance shall be disbursed upon completion of approved work and submission of appropriate documentation, including lien waivers and certificates of completion.

4.3 Unused Allowance

Any unused portion of the TI allowance shall not be available as a rent credit or cash payment to Tenant.

5. ADDITIONAL RENEWAL OPTIONS

Tenant shall have **two (2) additional successive options** to renew the Lease for periods of five (5) years each beyond the Extended Expiration Date, provided:

- Tenant is not in default under the Lease at the time of exercise

- Tenant provides written notice at least 12 months prior to the then-current expiration date
- Base Rent for each renewal term shall be 94% of fair market rent as determined by qualified appraisal

6. EXCLUSIVE USE ENHANCEMENT

During the Extension Term, Landlord agrees that within Riverdale Shopping Center:

- No tenant may operate a general discount store or value store exceeding 10,000 square feet
- No tenant may use "Value," "Discount," or "Outlet" in their primary trade name for retail operations exceeding 5,000 square feet

7. SIGNAGE RIGHTS EXPANSION

7.1 Monument Sign Priority

Tenant shall receive priority placement on the Shopping Center's primary monument sign, with letter size proportionate to square footage leased.

7.2 Directional Signage

Tenant may install up to five (5) directional signs within the Shopping Center at mutually agreed locations.

8. PARKING ALLOCATION

Tenant's parking allocation during the Extension Term shall be 315 spaces (15 spaces per 1,000 square feet), including:

- 25 designated employee parking spaces in the rear parking area
- 15 reserved customer spaces near the main entrance
- 275 shared customer parking spaces

9. OPERATING COVENANT MODIFICATION

9.1 Continuous Operation

Tenant covenants to operate the Premises continuously during the Extension Term, with "going dark" prohibited except for:

- Remodeling periods not exceeding 90 days with prior written notice
- Force majeure events beyond Tenant's reasonable control
- Casualty damage requiring restoration

9.2 Minimum Operating Hours

Tenant shall maintain minimum operating hours of:

- Monday through Saturday: 7:00 AM to 9:00 PM
- Sunday: 8:00 AM to 8:00 PM
- Extended holiday hours during peak retail seasons

10. CO-TENANCY PROVISION ENHANCEMENT

If the Shopping Center occupancy falls below 65% for six (6) consecutive months during the Extension Term, Tenant may elect to:

- Pay 60% of Base Rent until occupancy exceeds 75% for three consecutive months, OR
- Terminate the Lease with 120 days' written notice

11. ASSIGNMENT AND SUBLETTING RIGHTS

11.1 Affiliate Transfers

Tenant may assign the Lease to any affiliate, subsidiary, or entity under common control without Landlord's consent, provided the assignee has a net worth equal to or greater than Tenant.

11.2 Sale of Business

In the event of a sale of substantially all of Tenant's assets or business, Landlord's consent to assignment shall not be unreasonably withheld if the assignee meets reasonable financial and operational criteria.

12. ENVIRONMENTAL COMPLIANCE

Tenant acknowledges its ongoing responsibility for environmental compliance and agrees to maintain all necessary permits and licenses throughout the Extension Term at Tenant's sole cost and expense.

13. HVAC SYSTEM UPGRADE

Prior to the Extension Commencement Date, Landlord shall upgrade the HVAC system serving the Premises to ensure adequate climate control for the extended lease term, at Landlord's cost and expense.

GENERAL PROVISIONS

14. ESTOPPEL CERTIFICATE

Concurrently with the execution of this Amendment, Tenant shall provide Landlord with an estoppel certificate in Landlord's standard form confirming the status of the Lease.

15. FINANCIAL STATEMENTS

Tenant shall continue to provide annual financial statements and quarterly sales reports throughout the Extension Term as required under the Original Lease.

16. RATIFICATION

Except as specifically modified herein, all terms, covenants, and conditions of the Original Lease and all Prior Amendments remain in full force and effect and are hereby ratified and confirmed.

17. BINDING EFFECT

This Amendment shall be binding upon and inure to the benefit of the parties and their respective successors and assigns.

18. GOVERNING LAW

This Amendment shall be governed by and construed in accordance with the laws of the State of Connecticut.

IN WITNESS WHEREOF, the parties have executed this Amendment as of the date first written above.

LANDLORD:

HARTFORD COMMERCIAL REAL ESTATE TRUST

By: _____

Name: James Mitchell

Title: Chief Investment Officer

Date: February 1, 2024

TENANT:

SKYLINE STORES

By: _____

Name: Sarah Johnson

Title: Senior Vice President - Real Estate

Date: February 1, 2024

ACKNOWLEDGMENTS

STATE OF CONNECTICUT

COUNTY OF HARTFORD

On this 1st day of February, 2024, before me personally appeared James Mitchell, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his authorized capacity.

I certify under PENALTY OF PERJURY under the laws of the State of Connecticut that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Notary Public

My Commission Expires: March 15, 2026

STATE OF TEXAS

COUNTY OF DALLAS

On this 1st day of February, 2024, before me personally appeared Sarah Johnson, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that she executed the same in her authorized capacity.

I certify under PENALTY OF PERJURY under the laws of the State of Texas that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Notary Public

My Commission Expires: August 22, 2025